

Jamadul Hasan v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 21 August 2026 · Writ-C No. 27420 of 2026 · **Writ disposed of; petitioner directed to lodge clause 6.5 complaint**

HEADNOTE

Writ to quash late payment surcharge on a Rs. 40,828 demand disposed of by directing the consumer to lodge a clause 6.5 Supply Code complaint by a fixed date; the licensee to consider it and inform the result within three weeks.

FACTUAL SUMMARY

Jamadul Hasan petitioned the Allahabad High Court to quash a supply-company demand of Rs. 40,828 to the extent of late payment surcharge. Standing counsel for the State and counsel for the noticed licensee (respondent nos. 2 to 5) appeared. The licensee's counsel submitted that the petitioner must raise the dispute under clause 6.5 of the U.P. Electricity Supply Code, 2005. Petitioner's counsel asked that any such complaint be directed to be disposed of within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-clause-6.5

HOLDING

A consumer challenging a demand to the extent of late payment surcharge is to lodge a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not quash the demand in writ. It directed the petitioner to lodge that complaint by 29 August 2026, enclosing a certified copy of the order; on it being made, the supply company through the appropriate authority shall deal with it and inform the result of consideration within three weeks. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ to quash late payment surcharge on a Rs. 40,828 demand disposed of by directing the consumer to lodge a clause 6.5 Supply Code complaint by a fixed date; the licensee to consider it and inform the result within three weeks. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LATE PAYMENT SURCHARGE FORMING PART OF THE RS. 40,828 DEMAND WAS LIABLE TO BE QUASHED ON MERITS.